

Chapter IV

The AISH-to-ADAP Transition and the Consultation Standard

Bill 12, the Premier's Council, and the UN Committee Warning

The Transition

On December 9, 2025, the Alberta Legislative Assembly passed Bill 12, the *Financial Statutes Amendment Act, 2025 (No. 2)*. The bill received Royal Assent on December 11, 2025 and was enacted as SA 2025 c20.¹

Bill 12 effects what Inclusion Alberta has described as the most consequential restructuring of disability income in Alberta in a generation. Effective July 1, 2026, all current AISH recipients will be transitioned to the Alberta Disability Assistance Program (ADAP). The transition affects approximately 79,290 Albertans — the population the Government of Alberta has formally assessed as having severe and permanent disabilities preventing employment. Section 12.8 of Bill 12 removes the right of appeal for the transition decision. Recipients who wish to remain on AISH must reapply through a Medical Review Panel whose decisions are, on the legislation's own terms, final and not subject to appeal to an independent body.²

This chapter does not catalogue the substantive content of Bill 12 again; the structural mechanisms it activates — sub-survival income, cohabitation rules, employment-exemption reductions, federal-transfer capture — are documented in Chapter III. This chapter is concerned with a different question: whether the procedural framework under which Bill 12 was developed and passed met the consultation standard Canada has formally accepted under the United Nations Convention on the Rights of Persons with Disabilities. The conclusion the documented record supports is that it did not.

The Government's Consultation Claim

The Government of Alberta has, throughout the period of Bill 12's development and passage, advanced a single foundational rhetorical claim about ADAP. The claim appears on the program's public information page, in the May 12, 2026 Fact Sheet, and in ministerial correspondence to AISH recipients and to municipal councils. It reads:

ADAP is being thoughtfully designed, based on input from Albertans with disabilities...
ADAP public engagement concluded September 12, 2025. Thousands of Albertans participated in engagement via roundtables, telephone town halls, written submissions and

the online survey. Public engagement was undertaken in addition to engagement with disability advocates and service providers, including through roundtables and meetings.³

The structure of the rhetorical claim has three components. First, the program reflects what Albertans with disabilities asked for. Second, the engagement was numerically substantial — “thousands of Albertans.” Third, the engagement was augmented by direct meetings with advocates and service providers. Every government defence of Bill 12 against criticism — including responses to municipal motions, to media inquiry, and to written correspondence from constituents — rests on this foundation.⁴

What the Consultation Standard Requires

Chapter II of this piece establishes the binding international framework. CRPD Article 4(3), to which Canada has been bound since ratification on March 11, 2010, requires State Parties to “closely consult with and actively involve persons with disabilities, including children with disabilities, through their representative organizations” in the development and implementation of legislation and policies concerning persons with disabilities. The CRPD Committee’s General Comment No. 7 (2018) elaborates the standard. Consultation must be substantive and ongoing rather than notification-based. It must occur in the design phase, not only the comment phase. It must be conducted through representative organizations the disability community itself recognizes — not through individuals selected by the consulting authority. And it must, as a matter of substantive engagement, produce outcomes that the affected population can reasonably recognize as reflecting their input.⁵

Alberta’s domestic framework for meeting this standard has a specific institutional embodiment. The *Premier’s Council on the Status of Persons with Disabilities Act*, RSA 2000, c P-21, establishes the Premier’s Council as the standing statutory advisory body for disability policy. The Council is required by statute to advise on the development of disability legislation and programs. Its structure includes specific subcommittees for particular populations, including Indigenous people with disabilities. Its consultation processes, even when conducted by online survey, are framed as advisory input feeding into a multi-stakeholder analytic process led by disability community members themselves.⁶

The question this chapter examines is whether the consultation process undertaken by the Government of Alberta in connection with Bill 12 met the standard the Convention requires and the standard the province’s own statutory framework contemplates. The documented record establishes that it did not.

The Documented Gaps Between the Claim and the Standard

The Premier’s Council bypass. The Government of Alberta did not, in its public-facing consultation materials or in its responses to municipal advocacy, route the ADAP consultation through the Premier’s Council. The Council’s 2023–2026 Strategic Plan survey, conducted through its standing statutory framework, received 381 responses. The ADAP consultation, conducted through a parallel bespoke process the government directly controlled, is reported to have drawn “thousands.” The disparity reflects where the government directed participation effort: away from the standing mechanism, toward the process the government itself designed. The Premier’s Council exists. Its statute requires it to advise on the development of disability policy. The government chose to route ADAP consultation outside the Council. The choice itself is a documentation gap; a government that relied on its standing statutory body for this consultation would have a defensible structural answer to many of the further concerns documented below.⁷

The undisaggregated “thousands.” The government’s claim that “thousands of Albertans” participated in the consultation is not, on the public record, broken down by recipient status. The campaign has formally requested the participant breakdown: current AISH recipients, current recipients of other disability benefits, family members and caregivers of recipients, service providers and advocates, non-recipient Albertans with disabilities, and other. The government has not provided this breakdown. The Convention’s standard requires consultation with persons with disabilities through their representative organizations; the consultation cannot be verified as meeting that standard without data on who, specifically, participated.⁸

Provisions introduced after consultation closed. The consultation window closed on September 12, 2025 (a date the engagement page subsequently and quietly changed to September 14, 2025). Bill 12 was introduced on November 25, 2025, more than two months after the consultation closed. Key operative provisions of Bill 12 — including the removal of independent appeal rights through the abolition of the Citizens Appeal Panel, and the substantial revision of employment income exemption figures from the levels indicated in the August 2025 Discussion Guide — were not in the consultation materials on which participants based their input. The CRPD Article 4(3) standard requires consultation on the substantive content of legislation. Consultation on a discussion guide whose provisions are subsequently revised does not, on its face, meet that standard.⁹

The petition tabled at the Legislature. In October 2025, Calgary-based advocate Darryl Learie initiated a petition against the ADAP framework. The petition was circulated through disability community networks across Alberta and was tabled at the Alberta Legislature with documented signatures. The petition constitutes a documented empirical statement, by named Albertans with disabilities and their families, against the program the government’s consultation claim says reflects their input. A consultation process producing a program against which the population it consulted petitions does not, on its face, reflect what that population asked for.¹⁰

The opposition record across the disability sector. Inclusion Alberta’s November 26, 2025 media release stated that “Bill 12 erodes rights and deepens poverty for Albertans with disabilities.” The Alberta Medical Association, the Alberta Union of Provincial Employees, Disability Action Hall, the People’s

Alliance for Disabled Albertans, MS Canada, and Friends of Medicare Lethbridge have publicly opposed Bill 12. The Chair of Friends of Medicare Lethbridge, Bev Muendel-Atherstone, has characterized the transition as “the equivalent of being found guilty of fraud or malingering without having a trial or sentencing.” No major Alberta disability advocacy organization has publicly endorsed the Bill 12 framework. A municipal coalition including Edmonton, Calgary, Lethbridge, Camrose, Claresholm, Red Deer, and Medicine Hat has called for the AISH-to-ADAP transition to be paused pending meaningful consultation.¹¹

The engagement page record. The Alberta government’s ADAP engagement page — the public-facing documentation of the consultation the government’s rhetorical claim rests on — was rewritten from an active consultation portal to a look-back archive within seven days of the consultation closing. The page’s stated survey end date was quietly changed from September 12 (the date in the Discussion Guide and on the page during the consultation) to September 14, 2025. The page sat unchanged for 206 days through the introduction of Bill 12, the passage of Bill 12, and the March 2026 budget announcement — none of which were added to the page that documents the consultation feeding into those milestones. Since April 12, 2026, the page has been blocked from public archiving via the Wayback Machine. The pattern is documented in the campaign’s *Engagement Page Record: A Forensic Timeline*.¹²

The UN Committee Warning, March 26, 2025

On March 26, 2025, nine months before Bill 12’s passage in the Alberta Legislative Assembly, the United Nations Committee on the Rights of Persons with Disabilities issued its Concluding Observations on the combined second and third periodic reports of Canada. The Committee, in its capacity as the treaty body monitoring CRPD implementation, examined the operation of Canadian disability law and policy across federal, provincial, and territorial jurisdictions.¹³

Among the Committee’s specific recommendations, one is directly relevant to the structural circumstance under which Bill 12 was developed and passed. The Committee recommended that Canada “establish legally defined mechanisms ensuring compliance with the CRPD by all provinces and territories, and condition fiscal transfers from the Federal level to provinces and territories on their adherence to the CRPD.”¹⁴

The Committee’s recommendation addresses, in operational terms, the constitutional reality that human rights treaties ratified by the federal government are not automatically binding on provincial governments in their areas of constitutional jurisdiction. The federal government ratified the Convention; provincial governments operate the substantial portion of disability policy directly affecting recipients. Where a province develops legislation in an area engaging the rights protected under the Convention without meeting the Convention’s consultation standard, federal mechanisms to ensure compliance become the mechanism by which Canada’s treaty obligations are operationalized at the provincial level.

Canada has not, on the documented public record, acted on the Committee’s recommendation. No federal mechanism exists to condition fiscal transfers to provinces on CRPD compliance. The province that bypassed its own standing statutory advisory body in the development of the most consequential disability legislation in a generation faced no federal-level operational consequence for doing so. The Committee’s

March 26, 2025 warning of exactly this structural risk preceded Bill 12's passage by nine months. Bill 12 proceeded.

The Removal of Appeal Rights

Bill 12's most operationally consequential provision, after the transition itself, is its elimination of independent appeal rights for the affected population.

Under the AISH framework that existed before Bill 12, recipients who disagreed with an eligibility decision had recourse to the Citizens Appeal Panel — a quasi-judicial body composed of community members with relevant expertise, operating at arm's length from the AISH program and from the Government of Alberta. The Panel's decisions were binding on the program. The Alberta Ombudsman's public-facing description confirmed the appeal route: "Most decisions about your benefits can be appealed through the Appeals Secretariat."¹⁵

Bill 12 abolished the Citizens Appeal Panel as the appeal body for AISH eligibility decisions. In its place, the legislation establishes a Medical Review Panel composed of medical professionals appointed by the Government. The Medical Review Panel reviews disputed eligibility decisions. Its decisions are final. There is no independent appeal from a Medical Review Panel decision; judicial review remains available only on procedural grounds, not on the merits.¹⁶

Section 12.8 of Bill 12 specifically provides that the transition decision — the determination that an AISH recipient is reassigned to ADAP rather than retained on AISH — cannot be appealed. The CBC News reporting on August 21, 2025 quoted the ADAP Discussion Guide describing the Medical Review Panel as making decisions that "are final and not subject to appeal."¹⁷

Bill 12 also gives the Government of Alberta authority to limit which other program decisions can be appealed under the post-transition framework. The appeal-rights structure that operated as the procedural protection for AISH recipients across decades no longer exists in the form it existed in as recently as 2024.¹⁸

The CRPD Article 13 protection of access to justice for persons with disabilities is implicated directly by this provision. So is the structural conflict of interest inherent in the new arrangement: the party with the financial interest in reducing the AISH caseload (the Government of Alberta) controls the panel that determines who stays on AISH (the Medical Review Panel), and the Medical Review Panel's decisions are final. The independent check that the Citizens Appeal Panel provided no longer exists.

The Parallel to 1998

Chapter I of this piece documented a previous legislative moment in Alberta in which the provincial government, faced with the fiscal implications of a court decision recognizing rights of persons with disabilities, responded by attempting to constrain those rights through legislation. In 1998, the Klein government's response to the wave of sterilization lawsuits opened by the *Muir* judgment was Bill 26 of that year, the *Institutional Confinement and Sexual Sterilization Compensation Act*, which attempted to invoke section 33 of the Charter to cap damages and impose a 180-day limitation period. The 1998 Bill 26 was withdrawn within twenty-four hours under public pressure. The underlying impulse — that the appropriate institutional response to a population's assertion of rights is the constraint of those rights — was, in that moment, defeated in public.¹⁹

Bill 12 in 2025 operates on the same impulse through different mechanisms. The 1998 bill would have invoked section 33 of the Charter explicitly. The 2025 framework operates without the visible constitutional override the 1998 bill required, but the structural effect is comparable: the rights protected under the CRPD — specifically Articles 4(3), 12, 13, 19, 21, and 28 — are not honoured in the operation of the legislation. The recipient population was not consulted through representative organizations in the development phase. The legal-capacity protections of Article 12 are not honoured by the reversal of 79,290 prior findings of permanent disability without individual reassessment. The access-to-justice protections of Article 13 are not honoured by the elimination of independent appeal. The community-living protections of Article 19 are not honoured by the income reduction to ADAP levels. The accessible-information protections of Article 21 are not honoured by the absence of plain-language documentation of program operational rules. The adequate-standard-of-living protections of Article 28 are not honoured by the transition to sub-survival benefit levels.²⁰

In 1998, the constraint of rights was attempted explicitly and failed. In 2025, the constraint of rights was effected administratively and succeeded. The 1998 effort had to be defended at the constitutional level. The 2025 effort proceeded without that requirement, because the operational mechanisms were located in the financial structure of the program rather than in an explicit Charter override. The structural outcome is the same. The procedural visibility is different.

What This Chapter Establishes

Four observations follow from this chapter.

First, the consultation undertaken by the Government of Alberta in connection with Bill 12 did not meet the standard CRPD Article 4(3) requires. The standing statutory advisory body was bypassed. The participant breakdown supporting the “thousands of Albertans” claim has not been published. Key program provisions were introduced after consultation closed. A petition against the program was tabled at the Legislature. No major Alberta disability advocacy organization endorsed the framework. The engagement page itself has been altered in ways that are visible in the historical archive and that the government has not publicly explained.

Second, the international treaty body whose mandate is to monitor implementation of the Convention had specifically warned Canada about exactly this structural risk nine months before Bill 12 passed. The Committee's recommendation of legally defined federal mechanisms to condition fiscal transfers on provincial CRPD compliance was issued on March 26, 2025. Bill 12 passed on December 9, 2025. The Committee's warning was on the record. The provincial framework proceeded.

Third, the elimination of independent appeal under Bill 12 transfers final adjudicatory authority over AISH eligibility to a panel appointed by the same Government of Alberta that benefits financially from reducing the AISH caseload. The structural conflict of interest is built into the legislation. The procedural protection that the Citizens Appeal Panel provided for decades has been removed. The access-to-justice protections the Convention requires under Article 13 are not, on the documented record, honoured by this arrangement.

Fourth, the parallel to 1998 is not metaphorical. The Klein government's 1998 Bill 26 attempted to constrain the rights of sterilization survivors through explicit Charter override; it was withdrawn under public pressure within twenty-four hours. The Smith government's 2025 Bill 12 constrains the rights of contemporary disabled Albertans through administrative mechanisms that operate below the threshold of explicit constitutional confrontation. The structural impulse — that the appropriate institutional response to a population's assertion of rights is the constraint of those rights — is the same. The visibility of the impulse is what has changed.

The chapter that follows examines the upstream condition without which the consultation standard cannot operate: the right of the affected population to know, in advance, what they are being asked to consent to.

Notes — Chapter IV

1. Legislative Assembly of Alberta, Bill 12, *Financial Statutes Amendment Act, 2025 (No. 2)*, 31st Legislature, Second Session; passed at Third Reading December 9, 2025; received Royal Assent December 11, 2025; enacted as SA 2025 c20. Bill text and legislative status available at the Legislative Assembly of Alberta document repository.
2. Bill 12, section 12.8 (removal of appeal of the AISH-to-ADAP transition); see also CBC News (Bellefontaine), August 21, 2025, reporting on the ADAP Discussion Guide; Inclusion Alberta, “Bill 12 erodes rights and deepens poverty for Albertans with disabilities,” media release, November 26, 2025; Zachary Weeks, “Bill 12 and ADAP: What Alberta’s New Disability Law Means for AISH Recipients,” November 28, 2025. The 79,290 figure is from Government of Alberta, AISH Caseload Open Data, September 2025.
3. Government of Alberta, Alberta Disability Assistance Program public information page, alberta.ca/alberta-disability-assistance-program; Government of Alberta, Assisted Living and Social Services, ADAP Fact Sheet, May 12, 2026. The same foundational consultation claim appears across both sources.
4. See, for example, Minister Jason Nixon’s correspondence to AISH recipients (including the April 3, 2026 letter to Genevieve Bissonette) and Government of Alberta responses to municipal council motions calling for the transition to be paused.
5. *Convention on the Rights of Persons with Disabilities*, Article 4(3); Canada signed March 30, 2007, ratified March 11, 2010; Committee on the Rights of Persons with Disabilities, General Comment No. 7 (2018) on the participation of persons with disabilities through their representative organizations, CRPD/C/GC/7. (Discussed at length in Chapter II.)
6. *Premier’s Council on the Status of Persons with Disabilities Act*, RSA 2000, c P-21; Government of Alberta, Premier’s Council on the Status of Persons with Disabilities, Annual Report 2022–2023 (documenting the subcommittee structure, including the Indigenous people with disabilities subcommittee, and the 2023–2026 Strategic Plan survey methodology and response total).
7. Government of Alberta, Premier’s Council Annual Report 2022–2023 (381 Strategic Plan survey responses); The Alberta Disability System Breakdown, *Consultation Gap Rebuttal*, April 2026, Layer 5 (the Premier’s Council bypass).
8. The Alberta Disability System Breakdown, *Consultation Gap Rebuttal*, April 2026, Layer 2 (the undisaggregated participant claim) and Layer 4 (the petition as documented empirical rebuttal).
9. Government of Alberta, *Transforming Disability Income Assistance in Alberta: Discussion Guide*, August 13, 2025; Government of Alberta, ADAP engagement page (consultation window August 13 – September 12, 2025); Inclusion Alberta, *ADAP Fact Sheet*, October and December 2025 (documenting the revisions to employment income exemption figures and the appeal-rights provisions that emerged after consultation closed). Bill 12 introduced November 25, 2025.
10. Darryl Learie, Petition Against the Provincial Government’s New Alberta Disability Assistance Program (ADAP), October 8, 2025, polioalberta.ca; tabled at the Alberta Legislature with documented signatures.
11. Inclusion Alberta, “Bill 12 erodes rights and deepens poverty for Albertans with disabilities,” media release, November 26, 2025; MS Canada, “MS Canada calls to protect disability supports in Alberta,” November 28, 2025; Alberta Doctors’ Digest, “Pushing back against changes that make life harder for disabled Albertans,” November/December 2025; Disability Action Hall, 2025 record at actionhall.ca/2025/; Bev Muendel-Atherstone (Friends of Medicare Lethbridge), Lethbridge Herald, October 2025. Municipal coalition documented in The Alberta Disability System Breakdown Coalition Ledger, May 2026.
12. The Alberta Disability System Breakdown, *The Engagement Page Record: A Forensic Timeline*, May 2026.
13. United Nations Committee on the Rights of Persons with Disabilities, Concluding Observations on the combined second and third periodic reports of Canada, March 26, 2025 (document CRPD/C/CAN/CO/2-3, citation to be

verified at OHCHR before final edition).

14. CRPD Committee Concluding Observations on Canada, March 26, 2025, recommendation on legally defined federal mechanisms and the conditioning of fiscal transfers on provincial CRPD adherence.
15. Alberta Ombudsman, Appeals Secretariat information page (public-facing description of pre-Bill-12 appeal route); The Alberta Disability System Breakdown, *AISH Evidentiary Report Series*, April 2026, section on the pre-Bill-12 Citizens Appeal Panel.
16. Bill 12, sections governing the Medical Review Panel and the abolition of the Citizens Appeal Panel; Inclusion Alberta, *ADAP Fact Sheet*, December 2025; Zachary Weeks, “Bill 12 and ADAP,” November 28, 2025.
17. Bill 12, section 12.8; CBC News (Bellefontaine), August 21, 2025 reporting on the ADAP Discussion Guide.
18. The Alberta Disability System Breakdown, *AISH Evidentiary Report Series*, April 2026, section comparing pre-Bill-12 and post-Bill-12 appeal rights structures.
19. See Chapter I and its associated endnotes for the full record of the 1998 Bill 26 episode (the *Institutional Confinement and Sexual Sterilization Compensation Act* of 1998), distinct in subject and provenance from the 2018 NDP Bill 26 (*An Act to Combat Poverty and Fight for Albertans with Disabilities*).
20. See *Convention on the Rights of Persons with Disabilities*, Articles 4(3), 12, 13, 19, 21, and 28; The Alberta Disability System Breakdown, *Charter and CRPD Analysis*, April 2026, mapping the articles to the documented operational practices under Bill 12.